

Sarita Shah And Ors vs Rajesh Chauhan on 26 February, 2024

IN THE HIGH COURT OF HIMACHAL PRADESH, SHIMLA Cr. Revision No.266 of 2023 & Cr.

Revision No. 562 of 2023 .

Reserved on: 03.01.2024 Date of Decision: 26.02.2024

1. Cr. Revision No. 266 of 2023 Sarita Shah and Ors. ...Petitioners Versus Rajesh Chauhan ..Respondent

2. Cr. Revision No. 562 of 2023 Rajesh Chauhan ...Petitioner Versus Sarita Shah & Ors. ..Respondents Coram Hon'ble Mr Justice Rakesh Kainthla, Judge.

Whether approved for reporting?1 No For the Petitioners : Mr Parveen Kumar Chandel, Advocate.

For the Respondent : Ms. Anjali Soni Verma, Advocate.

For the Petitioner : Ms. Anjali Soni Verma, Advocate. For the Respondents : Mr Parveen Kumar Chandel, Advocate.

Rakesh Kainthla, Judge The present revisions are directed against the order dated 21.02.2023 passed by learned Principal Judge, Family Court, Shimla, vide which maintenance @ 7,000/- was awarded to Devanshi Chauhan and Himanshu Chauhan Whether reporters of Local Papers may be allowed to see the judgment? Yes.

(petitioners No. 2 and 3 before the learned Trial Court) from the date of the filing of the petition. (The parties shall hereinafter be .

referred to in the same manner as they were arrayed before the learned Trial Court for convenience).

2. Briefly stated, the facts giving rise to the present revisions are that the petitioners filed a petition under Section 125 of Cr.P.C. seeking maintenance @ 50,000/- per month. It was asserted that petitioner No. 1 was married to the respondent on 18.11.1996 at Chamba according to Hindu rites and ceremonies. Petitioner No. 1 and respondent resided together as husband and wife. Petitioner No. 2 was born in the year 1997 and petitioner No. 3 was born in the year 1999. Petitioner No. 2 was studying in S.D. College, Chandigarh. She was also pursuing a diploma in Film Acting Course from Barry John Acting Studio, Mumbai and was residing in Mumbai. Petitioner No. 3 completed his secondary education and he was pursuing a diploma in Nutrition and Health Science from Indira Gandhi National Open University (IGNOU). The respondent used to abuse the petitioners after getting intoxicated. The respondent filed a petition for restitution of conjugal rights. A compromise was effected between the parties and the petitioners started residing in the respondent's house. The behaviour of the respondent did not change and he continued to abuse the petitioners. The .

respondent is working as a General Manager in HRTC and is earning more than 1,50,000/- per month. He also owns the property. He has not provided anything to the petitioners.

Petitioner No.1 is a patient of Asthma and hypertension and requires a lot of money for her treatment. She retired as a teacher/lecturer from Government College Una in 2021. She requires 50,000/- per month from the respondent. She does not have any separate accommodation. She has to maintain her children and bear their educational expenses. Petitioner No. 2 has been suffering from Generalized Anxiety and Palpitation Disorder since 2007. She is undergoing regular treatment at Government Medical College and Hospital, Sector 32, Chandigarh and Post Graduate Institute of Medical Education and Research (PGIMER), Chandigarh. She had to take online treatment from AMI Hospital, Gujarat after the COVID-19 Pandemic. Petitioner No. 3 is suffering from Attention Deficit Hyperactivity Disorder (ADHD) from his childhood, which caused him difficulty in his studies. He had a problem with his backbone and had to undergo regular treatment. Therefore, the petition was filed to seek the maintenance.

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3. Notice of the petition was issued to the respondent;

however, the respondent did not appear despite service; hence, he was proceeded ex parte on 31.03.2022.

4. Petitioners examined petitioner No.3 (PW1), petitioner No.1 (PW2) petitioner No.2 (PW3), HC-Manoj Kumar (PW4) and Dr Karuna (PW5).

5. Learned Principal Judge, Family Court held that the statement of Dr Karuna revealed that petitioner No.2 Devanshi Chauhan was suffering from anxiety disorder. Petitioner No.3- Himanshu Chauhan visited the hospital in the year 2007 for the treatment of attention deficit hyperactivity disorder. The version of the petitioners that the respondent was abusing them remained unrebutted. The respondent is earning 1,50,000/-.

Petitioner No.1 has sufficient income for her subsistence and is not entitled to any maintenance. Petitioners No.2 and 3 are suffering from mental ailments as per the statement of Dr. Karuna. They have no source of income to fulfil their daily needs and are suffering due to mental and physical ailments. The respondent is duty-bound to maintain the petitioners.

Therefore, the petition was allowed and maintenance @ .

7,000/- per month was awarded to the petitioners No.2 and 3.

6. Being aggrieved from the order passed by the learned Principal Judge, two separate revisions have been filed. In the revision filed by the petitioners, it was asserted that the learned Principal Judge relied upon the fact that petitioner No.1 has retired as a Teacher/Lecturer from Government College, Una and concluded that she has sufficient income to maintain herself. It was not

appreciated that she was getting a handsome salary, which was reduced after her retirement; therefore, it has become difficult for her to maintain herself and her children.

The mere fact that the wife is earning will not disentitle her from claiming the maintenance. Petitioner No.2 had made a complaint against the respondent regarding the hurt caused to her. Petitioners have been undergoing treatment since 2007 and they find it difficult to maintain themselves with a meagre amount of 7,000/-; hence, it was prayed that the present petition be allowed and the maintenance be enhanced to 50,000/- per month.

7. In a petition filed by the respondent-husband, it was asserted that the order was passed contrary to Section 125 of .

Cr.P.C. No proper opportunity was afforded to the respondent to lead evidence. It was wrongly held that the respondent is liable to pay maintenance to petitioners No.2 and 3. They are major and are not entitled to any maintenance. No physical or mental disability was proved on record, which would prevent petitioners No.2 and 3 from earning to maintain themselves. Being major, they are not entitled to maintenance from the respondent and the liability cannot be fastened upon him. Dr Karuna nowhere stated that petitioners No.2 and 3 are unable to maintain themselves due to their ailments. Petitioner No.2 has completed her M.A. in English from S.D. College Chandigarh and she is residing in Mumbai, which shows that she is not suffering from physical or mental disorder or any disability. Petitioner No.3 is also pursuing his graduation, which shows that he can maintain himself. Petitioner No.1 left the company of the respondent in the year 2004 and the respondent had to file a petition for restitution of conjugal rights. The petitioners reside in the Government accommodation allotted to the respondent at Taradevi. The plea taken by them that they require the money to pay the rent is not correct. Therefore, it was prayed that the present revision be allowed and the order passed by the learned .

Principal Judge be set aside.

8. I have heard Mr Parveen Kumar Chandel, learned counsel for the petitioners and Ms Anjali Soni Verma, learned counsel for the respondent.

9. Mr Parveen Kumar Chandel, learned counsel for the petitioners submitted that the learned Principal Judge erred in denying maintenance to petitioner No. 1. There is a great disparity between the incomes of petitioner No.1 and the respondent and the maintenance should have been awarded to bridge the disparity. He has relied upon the judgment of Punjab and Haryana High Court in Amit Kumar vs. Navjot Dubey in Criminal Revision No.6198 of 2023 decided on 12.12.2016 and Rajnesh versus Neha, 2021 (2) SCC 324 in support of this submission. He further submitted that the learned Principal Judge, Family Court erred in awarding the maintenance @ 7,000/- to petitioners No.2 and 3. This amount is grossly insufficient to maintain them; therefore, he prayed that the maintenance be awarded @ 50,000/- per month to the petitioners.

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10. Ms Anjali Soni Verma, learned counsel for the respondent submitted that the learned Principal Judge erred in awarding maintenance to petitioners No.2 and 3. There was no evidence that petitioners No.2 and 3 were unable to maintain themselves. It is undisputed that they have become major and a father is bound to maintain his major children only if they are unable to maintain themselves due to some disability. The statement of Dr. Karuna does not show any disability. She relied upon the judgment of the Hon'ble Supreme Court in Abhilasha v.

Parkash (2021) 13 SCC 99: 2020 SCC OnLine SC 736 in support of this submission. She further submitted that the petition for maintenance cannot be used to balance the income of the parties and the only criterion is whether the wife is unable to maintain herself or not. When it is proved that the wife has independent income, she cannot be held entitled to any maintenance;

therefore, she prayed that the revision filed by the petitioners be dismissed and the revision filed by the respondent be allowed.

11. I have given considerable thought to the submissions at the bar and have gone through the records carefully.

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12. Section 125 of the Criminal Procedure Code deals with maintenance to the wife, children and parents. It reads that any person having sufficient means neglects or refuses to maintain his legitimate or illegitimate minor children or his legitimate or illegitimate child not being a married daughter who has attained majority where such child because of any physical or mental abnormality or injury is unable to maintain himself. Thus, it is apparent that only minor legitimate and illegitimate children are entitled to maintenance from their father and the right of the major legitimate and illegitimate children depends upon the proof of physical or mental abnormality or injury because of which, they are unable to maintain themselves.

13. It was specifically mentioned in Para 2 of the petition that petitioner No. 2 was born in the year 1997 and petitioner No. 3 was born in the year 1999, therefore, petitioner No.2 was aged 24 years and petitioner No.3 was aged 22 years on the date of filing of the petition on 14.02.2022. Thus, both the petitioners no. 2 & 3 were major on the date of filing of the petition. It was asserted in the petition that petitioners No. 2 & 3 suffered from .

mental disorders and petitioner No.3 also suffered from backbone problems. Dr. Karuna (PW5) was examined to prove this fact. She stated that patient Devanshi Chauhan was brought for treatment in the hospital on 29.3.2007. She was suffering from mixed anxiety and depressive symptoms with disassociated fits. She was advised anti-anxiety medication and psychological intervention. She was attended on 12.12.2011 by Dr. Priti Arun, who issued a prescription slip. She administered psychiatry therapy sessions from 2007 to 2017. The patient did not visit the hospital as per the record afterwards.

14. This statement at best can only prove that Devanshi Chauhan had mixed anxiety depressive symptoms and disassociated fits, for which she continued to take treatment from the year 2007 to 2017. This statement does not show that petitioner No.2 continued to suffer from this disorder after 2017 as well. Further, she has nowhere stated that this disorder would prevent petitioner No.2 from maintaining herself. This was significant because petitioner No.2 stated in her proof affidavit (Ext. PW3/A) that she was pursuing M.A. (English) from S.D. College Chandigarh through correspondence and pursuing her career in acting and modelling. This clearly shows that on the .

date of the filing of the affidavit, she was pursuing an MA in English and an acting and modelling career. Thus, it cannot be said that she had any difficulty in life due to the psychiatric disorder. She stated in Para 9 that she was unemployed and wanted to pursue her career in acting and modelling but was dependent upon her mother for her well-being. She stated in para 10 that she was a student and pursuing courses from Chandigarh and Mumbai. She was undergoing treatment and required maintenance from her father. She nowhere stated that she was unable to maintain herself due to mental or physical problems. Learned Principal Judge, Family Court misread the statement of Dr Karuna to hold that petitioner No.2 was unable to maintain herself due to a mental and physical ailment. It was laid down by the Hon'ble Supreme Court in Abhilasha (supra) that a major daughter is not entitled to claim maintenance from her father under Section 125 of Cr. P.C.; however, she may get the maintenance under Section 18 of the Hindu Adoption and Maintenance Act on proof of sufficient facts. It was observed:

"35. In the case before us, the application was filed under Section 125CrPC before the Judicial Magistrate First Class, Rewari who passed the order dated 16-2-2011. The Magistrate while deciding proceedings under Section 125CrPC could not have exercised the jurisdiction under .

Section 20(3) of the 1956 Act and the submission of the appellant cannot be accepted that the court below should have allowed the application for maintenance even though she has become major. We do not find any infirmity in the order of the Judicial Magistrate First Class as well as the learned Additional Magistrate in not granting maintenance to the appellant who had become major.

36. The maintenance as contemplated under the 1956 Act is a larger concept as compared to the concept of maintenance under Section 125CrPC. Section 3(b) while defining maintenance gives an inclusive definition including marriage expenses in the following words:

"3. Definitions.--In this Act unless the context otherwise requires--

(b) "maintenance" includes--

(i) in all cases, provision for food, clothing, residence, education and medical attendance and treatment;

(ii) in the case of an unmarried daughter also the reasonable expenses of and incident to her marriage;

(c) "minor" means a person who has not completed his or her age of eighteen years."

37. The purpose and object of Section 125CrPC, as noted above, is to provide immediate relief to the applicant in summary proceedings, whereas right under Section 20 read with Section 3(b) of the 1956 Act contains larger right, which needs determination by a civil court, hence for the larger claims as enshrined under Section 20, the proceedings need to be initiated under Section 20 of the Act and the legislature never contemplated to burden the Magistrate while exercising jurisdiction under Section 125CrPC to determine the claims contemplated by the 1956 Act."

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15. Petitioner No.3-Himanshu Chauhan stated in his proof affidavit (Ext. PW1/A) that he was pursuing a B.A. (1st year) from Rajiv Gandhi Government College, Shimla. The behaviour of his father was not good and he used to abuse and beat the petitioners. The petitioner no. 3 has been suffering from attention deficit hyperactivity disorder since his childhood, which caused difficulty in school and his studies. He was receiving treatment from the Department of Psychiatry, Government Medical College and Hospital, Sector 32, Chandigarh. He had problems with L4 and L5 vertebrae in his backbone and he had to undergo regular treatment. His mother had to bear a lot of medical expenditure for his well-being and his father was not providing any maintenance. He was a student and dependent upon his mother. He required maintenance from his father for his medical treatment and studies.

16. He has nowhere stated that he was unable to work for himself due to his disability. He described himself as suffering from attention deficit hyperactivity disorder and problems in L4 and L5 vertebrae but nowhere stated that these problems prevented him from earning his livelihood. The statement of Dr. .

Karuna (PW5) shows that Himanshu Chauhan visited the hospital in the year 2007 and the hospital issued a certificate on 07.11.2017. There is no evidence that the problem noticed in the year 2007 continued even on the date of deposition or before that. No Orthopedician was examined to prove that petitioner No.3 is unable to earn his livelihood due to the problem in L4 and L5 vertebrae; hence, the plea that petitioner No.3 is unable to earn his livelihood due to physical or mental incapacity was not established.

17. Learned Principal Judge held that petitioners No.2 and 3 are suffering from mental and physical ailments. They have no source of income; therefore, the respondent is bound to maintain them. The question whether petitioners No.2 and 3 were unable to maintain themselves or not was not considered by the learned Principal Judge.

18. Therefore, the learned Principal Judge erred in awarding maintenance in favour of petitioners No.2 and 3.

Petitioners No.2 and 3 being the major are not entitled to any maintenance in the absence of proof of their incapacity to earn their livelihood.

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19. Learned Principal Judge held that petitioner No.1 is a retired Government servant. She had sufficient income to maintain herself; therefore, she was not entitled to any maintenance. It was submitted that the learned Principal Judge erred in denying maintenance to petitioner No.1. It was duly proved on record that petitioner No.1 was earning 74,857/- as per the detail filed on record, whereas the respondent is earning 1,50,000/-. There is a great disparity in the income of the parties and in such a situation, the petitioner is entitled to maintenance. Reliance was placed upon the judgment of Punjab and Haryana High Court in Amit Kumar (supra), wherein it was held that the wife was entitled to enjoy the same amenities as she was enjoying in her matrimonial home. A similar view was taken in Rajnesh v. Neha, (2021) 2 SCC 324: 2020 SCC OnLine SC 903 wherein it was observed as under:

90.1. In Shailja v. Khobbanna [Shailja v. Khobbanna, (2018) 12 SCC 199 : (2018) 5 SCC (Civ) 308; See also the decision of the Karnataka High Court in P. Suresh v. S. Deepa, 2016 SCC OnLine Kar 8848: 2016 Cri LJ 4794 (Kar)], this Court held that merely because the wife is capable of earning, it would not be a sufficient ground to reduce the maintenance awarded by the Family Court. The court has to determine whether the income of the wife is sufficient to enable her to maintain herself, in accordance with the lifestyle of her husband in the matrimonial home.

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[Chaturbhuj v. Sita Bai, (2008) 2 SCC 316 : (2008) 1 SCC (Civ) 547 : (2008) 1 SCC (Cri) 356] Sustenance does not mean, and cannot be allowed to mean mere survival. [Vipul Lakhanpal v. Pooja Sharma, 2015 SCC OnLine HP 1252 : 2015 Cri LJ 3451]

20. There can be no dispute with this proposition of law that the wife is entitled to the same amenities, which she was enjoying in her matrimonial home; however, the Courts cannot balance the salary of a husband and wife in the proceedings under Section 125 of Cr.P.C. and has to determine whether the wife was able to maintain herself or not at the same level which she was maintaining in her matrimonial home.

21. The petitioner stated in her affidavit of assets and liabilities that she was residing in her matrimonial home. She required medical expenses of 55,000/- for herself and her children, household expenses of 15,000/- for her own and 18,000/- rent for her daughter + 10,000/- for her food. It has already been found out above that petitioners No.2 and 3 are not entitled to any maintenance from their father; therefore, the petitioner will only be entitled to the medical

expenses, and household expenses for herself. The petitioner no. 1 has quantified the medical expenses for herself and her children at 55,000/- and household expenses at 15,000/- total 70,000/-.

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If the medical expenses of the children are excluded, the expenses of the petitioner no. 1 will be less than 70,000/-.

22. Petitioner No. 1 is a retired Government servant and entitled to reimbursement of the medical expenses. This factor has also to be considered while evaluating the need for medical expenses. The record of treatment of petitioner No. 1 was not filed to show the medical expenses being incurred by her;

therefore, it cannot be said that the amount of 74,857/- being earned by petitioner No.1 is insufficient for her maintenance and that she is entitled to the additional expenses.

23. Therefore, the learned Principal Judge, Family Court had rightly declined the maintenance to the petitioner No.1 and no interference is required with the same.

Final Order:

24. In view of the above, the criminal revision filed by the respondent/husband is allowed and the order passed by the learned Principal Judge, Family Court awarding the maintenance to petitioners No.2 and 3 is ordered to be set aside. The petition filed by the petitioners seeking the enhancement of the maintenance and awarding of the .

maintenance in favour of petitioner No. 1 is dismissed;

however, this will not prevent petitioner No.2 from claiming the maintenance under the Hindu Maintenance and Adoption Act on proof of the necessary conditions, if otherwise entitled.

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(Rakesh Kainthla)
Judge

26th February, 2024
(Saurav Pathania)

